

HOUSE No. 3039

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the housing development incentive program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/17/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/30/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/30/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/4/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/5/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/5/2025</i>

HOUSE No. 3039

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 3039) of Antonio F. D. Cabral and others relative to the housing development incentive program. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the housing development incentive program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Section 38BB of chapter 63 of the General Laws, as amended by section 19 of
2 chapter 50 of the acts of 2023, is hereby amended by striking out subdivision (5) and inserting in
3 place thereof the following subdivision:-

4 (5) EOHLC may authorize up to \$100,000,000 in credits annually under this section and
5 subsection (q) of section 6 of chapter 62. EOHLC may authorize annually any credits under this
6 section or said subsection (q) of said section 6 of said chapter 62 returned to EOHLC by a
7 certified housing development project. The total amount of credits authorized during a year shall
8 include: (1) credits granted during the year under this section or said subsection (q) of section 6
9 of chapter 62; and (2) carry forwards of credits from prior years under this section or said
10 subsection (q) of section 6 of chapter 62, to the extent that such credit carry forwards are
11 estimated by the commissioner of revenue to offset tax liabilities during the year. Any portion of
12 the \$100,000,000 annual cap not awarded by EOHLC in a calendar year may be applied to

awards in a subsequent year. EOHLC shall provide the commissioner of revenue with any documentation that the commissioner deems necessary to confirm compliance with the annual cap and the commissioner shall provide a report confirming compliance with the annual cap to the secretary of administration and finance and the secretary of housing and livable communities.

Section 2. Section 6(q) of chapter 62, as so appearing, is hereby amended by adding the following subsection:-

(7) EOHLC may authorize up to \$5,000,000 in credits to an individual project.

Section 3. Section 1 of chapter 40V of the General Laws, as so appearing, is hereby amended by striking the definition “housing development project” and inserting in place thereof the following:

"Housing development project", a multi-unit residential rehabilitation project that is located in a gateway municipality and once rehabilitated, shall contain at least 75 per cent market rate units.

Section 4. Chapter 40V Section 4 (a)(iv) is hereby amended by striking “80 per cent” and inserting in place thereof “75 per cent”.

Section 5. Title VII Chapter 40V Section 3 Approval of application for tax exemption for housing development project under Sec. 59 of chapter 59 shall be amended as follows:

Under section 5M of chapter 59, the department shall approve within 90 days a municipality's tax exemption agreement for a housing development project located within an approved housing development zone.